

		than Orange County. Such material are not appropriate for consideration in assessing a challenge to the pleadings. <u>Alter Ego allegations</u> – Defendant moves to strike what she describes as “conclusory” allegations of alter ego liability. The FAC contains sufficiently pleaded allegations of alter ego liability for purposes of a challenge to the pleadings. (See, e.g., <i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 235-236 [“Defendants argue that Rutherford failed to allege specific facts to support an alter ego theory, but Rutherford was required to allege only ‘ultimate rather than evidentiary facts.’”].) Accordingly, the FAC sufficiently alleges the ultimate facts sufficient to plead alter ego liability. The motion is DENIED as to alter ego allegations. <u>Punitive Damages and Emotional Distress Allegations/Prayer</u> – Defendant argues that facts warranting imposition of punitive damages have not been adequately alleged. The FAC sufficiently alleges causes of action for false promises and fraud, which are sufficient predicate causes of action for imposition of punitive damages and emotional distress damages. No demurrer has been filed challenging the sufficiency of the fraud causes of action. Accordingly, the motion is DENIED as to punitive damages and emotional distress damages allegations. <u>Duplicative/Irrelevant Allegations</u> – The motion is DENIED as to any purportedly duplicative and conclusory allegations. As an initial matter, it is impossible to ascertain what material Defendant seeks to strike from the FAC based upon the notice of motion. Moreover, the motion is essentially an improper attempt to use Code Civ. Proc. §436 as a “line-item veto”. (See <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1683.) Defendant shall file an Answer to the First Amended Complaint within 30 days of notice of this ruling. The Case Management Conference is CONTINUED to August 20, 2026, at 9:30 a.m. in Department C12. Plaintiff shall provide notice.
11.	Stewart Title Guaranty Company vs. Wilbourn 25-01516717	1. Demurrer to Complaint (x3) 2. Motion to Strike Portions of Complaint (x3) 3. Case Management Conference OFF CALENDAR. CASE IS STAYED. See ROA 133

12.	American Express National Bank vs. Kim 25-01482908	1. Motion for Summary Judgment and/or Adjudication 2. Case Management Conference Plaintiff American Express National Bank’s (“Plaintiff”) unopposed Motion for Summary Judgment, or in the Alternative Summary Adjudication (“Motion”), is GRANTED. Plaintiff met its initial burden to show every element of its causes of action for breach of contract. (See Code Civ. Proc. § 437c, subd. (p)(1) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850 [same]; <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [breach of contract elements]; see also Pl. SSUF #1-14; Touhidi Decl. at ¶¶9-14, Exh. A-D.) On 2/20/26, the date this motion was originally set to be heard, Defendant Hyunji Kim appeared and requested a continuance in order to permit him time to file an opposition. Defendant’s request was granted, and he was given “a one-time opportunity to file the opposition to Plaintiff’s motion.” (See ROA 41 [2/20/26 Minute Order].) To date, no opposition has been filed, despite the 11 week continuance of this hearing to provide Defendant an opportunity to respond. Accordingly, the court finds that Defendant has failed to meet his shifted burden to identify a disputed issue of material fact that necessitates a trial of this action. The Plaintiff shall file a proposed judgment with this Court within 60 days of this ruling. The Court now schedules an OSC re: Proposed Judgment Submission on August 20, 2026, at 9:30 a.m. in Department C12. If the proposed judgment is approved in advance of that date, the hearing will go off calendar. The clerk shall give notice.
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